

Saint Lucia 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Saint Lucia during the year.

Significant human rights issues included significant presence of any of the worst forms of child labor.

The government did not take credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent press, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for workers to form and join independent unions, bargain collectively, and conduct legal strikes. The law prohibited antiunion discrimination, and workers fired for union activity had the right to reinstatement. The government enforced the law effectively. Penalties were more than those for analogous violations such as civil rights violations but were rarely applied against violators.

The government generally respected freedom of association, and employers generally respected the right to collective bargaining. Workers exercised the right to strike and bargain collectively.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

In August, the government established a minimum wage effective August 1. Employers had until October 1 to grant all employees at least the minimum wage. The legislated workweek was 40 hours, with a maximum of eight hours per day. Special legislation covered work hours for shop assistants, agricultural workers, domestic workers, and industrial workers.

Occupational Safety and Health

The government set occupational safety and health (OSH) standards that were appropriate. The Department of Public Service, Home Affairs, Labour, and Gender Affairs (Ministry of Labour) conducted OSH inspections.

Workers could remove themselves from situations that endangered health or safety without jeopardy to their employment, and authorities effectively protected employees in these cases. Authorities reported they received more than 100 reports of accidents on the job and one individual died during the year.

Labor laws, including overtime rules and OSH standards, applied to all

workers, whether in the formal or informal sector.

The government effectively enforced the law in the formal sector. The labor code provided penalties that were not commensurate with those for similar crimes such as fraud or negligence. The Ministry of Labour was responsible for monitoring implementation of labor laws. Employers were generally responsive to ministry requests to address labor code violations, and authorities rarely levied fines.

Wage, Hour, and OSH Enforcement

Labor inspectors effectively monitored compliance with OSH standards. Inspectors had the authority to initiate sanctions, institute proceedings before the tribunal, or hold informal inquiries when complaints were brought to their notice. Inspectors had the authority to make unannounced inspections. The number of inspectors was not adequate to enforce compliance.

According to the International Labor Organization, the informal sector made up approximately 27 percent of the workforce. The government did not enforce labor laws in the informal sector.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of

government authorities.

Prolonged Detention without Charges

The constitution prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

Lengthy pretrial detention was a problem. The government reported that while all trial dates were set, there were often prolonged delays. For example, in one case the accused person had been awaiting trial for 10 years.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or

Punishment

The constitution prohibited such practices, and there were no credible reports government officials employed them.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal minimum age for marriage was 18, or 16 with parental consent. The government generally enforced the law.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law did not provide for the granting of asylum or refugee status, and the

government did not have a system for providing protection to refugees.

d. Acts of Antisemitism and Antisemitic Incitement

According to the 2022 census, there were no Jewish citizens. There were no reports of antisemitic incidents during the year.